

23CHCV03048 23CHCV03048

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Case Number: 23CHCV03048 Hearing Date: June 24, 2026 Dept: F43

Dept. F43

Hearing Date: 06-24-26

Case # 23CHCV03048, 23STLC00535, Nakia

Miraka Dillard, et al. v. Cruetz, et al.

Trial Date: 10-26-26

MOTION TO BIFURCATE

AND RECLASSIFY

MOVING PARTIES: Plaintiffs Nakia Mirka Dillard and Aubrey

Richardson, a minor by and through her guardian ad litem, Nakia Mirka Dillard

RESPONDING PARTIES: Defendants Christiebelle Fors Cruz and Raul

Cruz

RELIEF REQUESTED

Order bifurcating trial of liability from

trial of damages and reclassifying the action from unlimited civil jurisdiction

to limited civil jurisdiction.

RULING: Motion to bifurcate is granted. Motion to reclassify is denied without prejudice.

SUMMARY OF ACTION

Wawanesa v. Cruz (Case No. 23STLCV00535) - On January 25, 2023, Wawanesa

General Insurance Company filed a complaint in subrogation against defendant

Christiebelle Fors Cruz, seeking damages for injuries suffered in a vehicle

collision by its insureds. The insureds

are plaintiffs Nakia Mirka Dillard and Aubrey Richardson, a minor by and

through her guardian ad litem, Nakia Mirka Dillard (Plaintiffs). Wawanesa asserts a single motor vehicle

claim. The case was filed as a limited

civil matter seeking \$24,361.95 in damages.

Dillard v. Cruz (Case No. 23CHCV03048) - On October 10, 2023, Plaintiffs filed

a separate complaint, asserting motor vehicle and negligence causes of action

against defendants Christiebelle Fors Cruz and Raul Cruz. Plaintiffs allege that on November 13, 2021,

Fors Cruz collided with their vehicle when she travelled at an unsafe speed and

made an unsafe lane change. Fors Cruz

was driving a vehicle owned by defendant Raul Cruz. Plaintiffs filed their complaint as an

unlimited civil matter.

The cases were related on July 30, 2024. On December 6, 2024, the court (Hon. Gary

Micon) granted a joint stipulation to consolidate the cases, with Case No.

23CHCV03048 serving as the lead case.

On May 26, 2026, Plaintiffs moved to

bifurcate trial into separate liability and damages phases and to reclassify

the case to a limited civil jurisdiction matter. Defendants Fors Cruz and Cruz filed a notice

of non-opposition on June 10, 2026.

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ANALYSIS

A. Bifurcation

“The court, in furtherance of convenience or to avoid

prejudice, or when separate trials will be conducive to expedition and economy,

may order a separate trial of any cause of action . . . or of any separate

issue or of any number of causes of action or issues[.]” (Code Civ. Proc., § 1048, subd. (b) [based on

Fed. R. Civ. P. 42(b)].) “The court may,

when the convenience of witnesses, the ends of justice, or the economy and

efficiency of handling the litigation would be promoted thereby, on motion of a

party, after notice and hearing, make an order, no later than the close of

pretrial conference in cases in which such pretrial conference is to be held,

or, in other cases, no later than 30 days before the trial date, that the trial

of any issue or any part thereof shall precede the trial of any other issue or any part thereof in the case, except for special defenses which may be tried first pursuant to Sections 597 and 597.5.”

(Code Civ. Proc., § 598.)

“Section 598 of the Code of Civil Procedure gives the

trial court power to order ‘that the trial of the issue of liability shall

precede the trial of any other issue in the case . . . ‘Its objective is

avoidance of the waste of time and money caused by the unnecessary trial of

damage questions in cases where the liability issue is resolved against the

plaintiff.” (Cohn v. Bugas (1974) 42 Cal.App.3d 381,

385, citation omitted.) However, the court cannot order the separate

trial of an issue of liability when because of the nature of the case it is

necessary to prove the plaintiff’s damages in order

to establish that liability. (Cook v. Superior Court (1971)

19 Cal.App.3d 832, 834 [court could not bifurcate an issue of liability from

damages in legal malpractice claim where it was necessary for plaintiff to

prove his former attorney was negligent in the prosecution of a claim and but

for that negligence, plaintiff would have obtained a more favorable result].)

Bifurcation is appropriate in cases where the “liability

issue is resolved against the plaintiff and bifurcation will avoid the waste of

time and money caused by the unnecessary trial of damage questions.” (Trickey v. Superior Court In and For

Sacramento County,(1967) 252 Cal.App.2d 650, 653.) The primary purpose of bifurcation is to

“avoid wasting court time in cases where the plaintiff loses on the liability

issue, to promote settlements where the plaintiff wins on the liability issue,

and to afford a more logical presentation of the evidence, thus simplifying the

issues for the jury.” (Foreman &

Clark Corp. v. Fallon,(1971) 3 Cal.3d 875, 888, fn. 8; Code Civ. Proc., § 1048, subd. (b).) Whether a single action should be bifurcated

is a matter within the discretion of the trial court, whose ruling will not be

disturbed absent a manifest abuse of discretion. (Downey Savings & Loan Assn. v. Ohio

Casualty Ins. Co.,(1987) 189 Cal.App.3d 1072, 1086.) Where there are both issues of law and fact,

the issue of law must be first disposed of.

(Code Civ. Proc., § 592.)

The parties must raise bifurcation issues at the case

management conference or in a noticed motion.

(Cal. Rules of Court, rule 3.727(10).)

If bifurcation is sought under Code of Civil Procedure section 598,

bifurcation must be ordered at least 30 days before trial and the motion must

be filed at least 16 court days before the court must enter its order. (Code Civ. Proc., § 598.)

Plaintiffs timely filed and served their motion over 30

days before trial.

Plaintiffs move to bifurcate trial in this matter into

two phases: Liability (Phase 1) and

Damages (Phase 2). According to

Plaintiffs, bifurcation will serve the interests of judicial economy,

procedural efficiency, and fundamental fairness. Furthermore, bifurcation will prevent undue

prejudice by separating contested liability issues from the emotional weight of

damages evidence.

After reviewing the moving papers, the court finds

Plaintiffs have properly demonstrated a basis for bifurcation.

If liability is tried first, judicial economy,

efficiency, and fairness are served. This

is a personal injury matter arising from a vehicle collision between Plaintiffs,

defendant Fors Cruz, and vehicle owner defendant Cruz. If Defendants prevail on the issue of

liability, then no damages phase will be necessary. If Plaintiffs prevail, the likelihood of the

parties settling will increase and the issue of damages may be avoided

altogether. (Declaration of Arya Azizi ¶

5.) Next, plaintiffs' counsel anticipates

the liability phase will last no more than two days and the damages phase will

last no more than two days. Plaintiffs will

have at least one expert witness for liability and one for damages, with

Defendants likely calling experts in the same categories. Plaintiff Dillard and defendant Fors Cruz will testify regarding damages, and the damages phase will involve testimony of treating medical personnel and Plaintiffs' family members. Plaintiffs also claim the weight of the evidence (accident reconstruction, medical treatment, and testimony on pain and suffering) demonstrates the damages portion of trial will consume over half the total trial time. (Azizi Decl. ¶ 4.) Furthermore, trying liability first will reduce the risk of prejudice on the damages issue.

If the jury is required to make a determination on liability before hearing evidence or testimony on damages, the jury will be insulated from exposure to testimony and evidence concerning any harm and pain suffered by Plaintiffs. This will allow the jury to objectively decide the issue of negligence without the emotional weight of damages testimony.

Defendants do not oppose the motion.

Therefore, the court grants Plaintiffs' motion to bifurcate trial in this matter into two phases: Liability (Phase 1) and Damages (Phase 2).

B. Reclassify

"The following civil cases and proceedings are limited civil cases: A case at

law if the demand, exclusive of interest, or the value of the

property in controversy amounts to thirty-five thousand

dollars (\$35,000) or less.”

(Code Civ. Proc., § 86, subd. (a)(1).)

A plaintiff or defendant may move to reclassify an action

within the time allowed for that party to respond to the initial pleading. (Code Civ. Proc., § 403.040, subd. (a).) If the case has been classified in the

incorrect jurisdiction, the court must enter an order for reclassification,

regardless of any fault or lack of fault.

If the motion is made after the time for the defendant to

respond to the pleading, the motion may only be granted if (1) the case is

incorrectly classified; and (2) the

moving party shows good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd.

(b).) Both conditions are

mandatory. (Leonard v. Superior Court

(2015) 237 Cal.App.4th 34, 43.)

Here, Plaintiffs have moved to reclassify this matter to

a limited civil jurisdiction matter well after the time to file a responsive

pleading expired. Thus, Plaintiffs must

also show “good cause for not seeking reclassification earlier.”

According to Plaintiffs, medical records, billing

statements, wage loss documentation, and other evidence to date demonstrate

that the total recoverable damages do not exceed \$35,000. (Aziz Decl. ¶ 6.) Although this demonstrates the case is

incorrectly classified, Plaintiffs fail to demonstrate good cause for the later

filing. Plaintiffs do not state when

they determined the case was incorrectly classified or when they received

evidence demonstrating they do not meet the jurisdictional threshold for an

unlimited civil jurisdiction matter.

Therefore, the court denies Plaintiffs' motion to reclassify

without prejudice.

CONCLUSION and ORDER

Motion to bifurcate is granted. Motion to reclassify is denied without

prejudice.

Plaintiffs to give notice.